

Master Services Agreement

CloudBridge Solutions Pvt Ltd -> Brainium IT | Ref: CBS-2025-0312

INCOMING CONTRACT - MEDIUM RISK

MASTER SERVICES AGREEMENT

Between: CloudBridge Solutions Pvt Ltd ("Vendor")
And: Brainium Information Technologies Pvt Ltd ("Client")
Contract Ref: CBS-2025-0312 | Date: 15 March 2025

VENDOR NOTE: This is CloudBridge's standard service agreement.
Please sign and return within 7 business days.

1. DEFINITIONS

- 1.1 "Agreement" means this Master Services Agreement and any Statements of Work attached hereto.
- 1.2 "Services" means cloud infrastructure, DevOps consulting, and software development services as described in each SOW.
- 1.3 "Confidential Information" means any information marked as confidential or that a reasonable person would consider confidential.
- 1.4 "Intellectual Property" includes patents, copyrights, trademarks, and trade secrets.
- 1.5 "Work Product" means deliverables created by the Vendor specifically under a SOW.

2. PAYMENT TERMS

- 2.1 CloudBridge shall issue invoices on the 1st of each calendar month for services rendered in the prior month, or upon milestone completion as defined in the SOW.
- 2.2 The Client shall pay all undisputed invoices within NET 45 DAYS from the invoice date.
- 2.3 Disputed invoices must be raised within 7 business days of receipt in writing. Payment of the undisputed portion remains due.
- 2.4 Overdue amounts shall accrue interest at 2% per month.
- 2.5 All amounts are in INR exclusive of GST, which shall be charged additionally. CloudBridge reserves the right to adjust pricing annually in line with the Consumer Price Index (CPI), with 60 days' notice.
- 2.6 CloudBridge reserves the right to suspend Services if any invoice remains unpaid for more than 15 days beyond the due date.

3. INTELLECTUAL PROPERTY & OWNERSHIP

- 3.1 All Work Product created specifically for the Client under a SOW shall be owned by the Client upon full and final payment of all amounts due under the relevant SOW.
- 3.2 CloudBridge retains all rights in its Pre-existing IP, including proprietary tools, frameworks, accelerators, and methodologies ("CloudBridge IP"). The Client is granted a non-exclusive, non-transferable licence to use CloudBridge IP solely as incorporated in the Work Product during the term of this Agreement.
- 3.3 If the Client fails to make full payment, ownership of the Work Product shall not transfer and shall revert to CloudBridge.
- 3.4 CloudBridge may reference the Client's name and the nature of the engagement in its marketing materials and case studies, unless the Client objects in writing within 30 days of contract execution.
- 3.5 Derivative works built by the Client on top of Work Product are owned by the Client, provided they do not incorporate CloudBridge IP in a standalone manner.

4. CONFIDENTIALITY

- 4.1 Both parties agree to keep Confidential Information confidential and not to disclose it to any third party without prior written consent.
- 4.2 Confidential Information shall be used solely for the purposes of this Agreement.
- 4.3 Confidentiality obligations shall survive for 3 YEARS after termination of this Agreement.
- 4.4 Exceptions: information that is publicly known, already known to the receiving party, independently developed, or required by law.
- 4.5 The Vendor's personnel and subcontractors will be bound by equivalent confidentiality obligations.

5. LIABILITY

- 5.1 Neither party shall be liable for indirect, consequential, or special damages, including loss of profits or revenue.
- 5.2 CloudBridge's total aggregate liability under or in connection with this Agreement shall not exceed the FEES PAID IN THE 6-MONTH PERIOD PRECEDING THE CLAIM.
- 5.3 The liability cap shall not apply to: (a) death or personal injury; (b) fraud; (c) wilful misconduct.

6. INDEMNIFICATION

- 6.1 Each party shall indemnify the other from third-party claims arising from its own breach of this Agreement, negligence, or wilful misconduct.
- 6.2 CloudBridge's IP indemnity: CloudBridge warrants that the Work Product, when used as intended, will not infringe third-party IP. If a claim arises, CloudBridge may at its option: (a) modify the Work Product; (b) obtain a licence; or (c) terminate the relevant SOW and refund fees paid for the infringing deliverable.
- 6.3 Standard notice and cooperation obligations apply.

7. TERM & TERMINATION

- 7.1 This Agreement is effective from the date of last signature and continues for an INITIAL TERM OF 24 MONTHS, automatically renewing for successive 12-month periods unless either party gives 60 days' written notice of non-renewal.
- 7.2 Either party may terminate for convenience with 60 DAYS' WRITTEN NOTICE.
- 7.3 Either party may terminate for cause if the other materially breaches and fails to cure within 21 days of written notice.
- 7.4 Upon termination by the Client for convenience, the Client shall pay: (a) all fees for Services performed up to termination; (b) a TERMINATION FEE equal to 20% of the remaining contract value under the current SOW.
- 7.5 Upon termination, CloudBridge will deliver Work Product in its current state. Confidential information will be returned or destroyed within 30 days.

8. WARRANTIES

- 8.1 CloudBridge warrants that: (a) it has full authority to enter this Agreement; (b) Services will be performed with professional skill and care; (c) Work Product will materially conform to SOW specifications; (d) Work Product will not knowingly infringe third-party IP.
- 8.2 Warranty claims must be raised within 60 DAYS of delivery of the relevant Work Product. After this period, the Work Product is deemed accepted.
- 8.3 All other warranties, express or implied, are disclaimed to the fullest extent permitted by law.

9. DATA PROTECTION

- 9.1 Both parties shall comply with applicable data protection laws, including the DPDPA 2023 and GDPR where applicable.
- 9.2 Where CloudBridge processes personal data as a processor, it shall: (a) process only on Client instructions; (b) maintain appropriate security; (c) notify Client of a data breach within 72 HOURS.
- 9.3 Sub-processing is permitted with prior written consent of the Client.
- 9.4 Personal data will be deleted or returned within 45 days of termination.

10. GOVERNING LAW & DISPUTE RESOLUTION

10.1 This Agreement is governed by the laws of India.

10.2 The courts of MUMBAI, MAHARASHTRA shall have exclusive jurisdiction.

10.3 The parties shall attempt good-faith negotiation for 45 days before initiating formal proceedings.

10.4 Unresolved disputes shall be referred to arbitration under the Arbitration and Conciliation Act 1996, with arbitration seated in Mumbai, conducted by a panel of three arbitrators.

11. GENERAL

11.1 Force Majeure: Neither party is liable for failures due to causes beyond their reasonable control. If a force majeure event persists beyond 90 DAYS, either party may terminate with 14 days' notice, but the Client shall pay for all services rendered up to the termination date.

11.2 Assignment: CloudBridge may assign this Agreement to any affiliate, acquirer, or successor without Client consent. Client may not assign without CloudBridge's written consent.

11.3 Entire Agreement: This Agreement supersedes all prior agreements between the parties on this subject matter.

11.4 Amendments: Amendments must be in writing and signed by both parties.

11.5 Waiver: No waiver is effective unless in writing.

11.6 Severability: Invalid provisions will be modified to the minimum extent necessary; remaining provisions remain in effect.

11.7 Notices: Notices may be given by email or courier.

11.8 Subcontracting: CloudBridge may engage subcontractors provided it remains responsible for their performance and they are bound by equivalent obligations.

11.9 Anti-Bribery: Both parties confirm compliance with applicable anti-corruption laws.

11.10 Insurance: CloudBridge maintains professional indemnity insurance of no less than INR 1 crore per claim.

11.11 Publicity: CloudBridge may issue a joint press release announcing this engagement, subject to Client's approval of the content, not to be unreasonably withheld.

SIGNED ON BEHALF OF CLOUDBRIDGE SOLUTIONS PVT LTD

Authorised Signatory: _____ Date: _____
